

The Standards of Weights and Measures (Inter-State Verification and Stamping) Rules, 1987

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[THE-STANDARDS-OF-WEIGHTS-AND-MEASURES-INTER-STATE-VERIFICATION-AND-STAMPING-RULES-1987](#) of 1987

[Published on 2 December 1987](#)

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[The Standards of Weights and Measures \(Inter-State Verification and Stamping\) Rules, 1987](#)

[Published Vide Notification G.S.R. 945\(E\), DATED 2-12-1987, published in the Gazette of India, Extra, Part 2, Section 3\(i\), dated 2-12-1987.](#)

[1110.](#)

[G.S.R. 945 \(E\), dated 2.12.1987 - In exercise of the powers conferred by section 83 of the Standards of Weights and Measures Act, 1976 \(60 of 1976\), the Central Government hereby makes the following rules, namely](#)

[1.](#)

Short title and commencement

-(1) These rules may be called The Standards of Weights and Measures (Inter-State Verification and Stamping) Rules, 1987.

(2)

They shall come into force on the date of their publication in the Official Gazette.

Vide G.S.R. 945(E), dated 2-12-1987, published in the Gazette of India, Ext., Pt. II, Section 3(i), dated 2-12-1987.

2.

Definitions.-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Standards of Weights and Measures Act, 1976 (60 of 1976);

(b)

"Section" means a section of the Act;

(c)

"Mint" means the Government of India Mint at Bombay;

(d)

"Schedule" means a schedule annexed to these rules.

3.

Classification of Weights and Measures

-(1) The classes of weights or measures specified in the First Schedule shall be deemed to fall within the first category as referred to in clause (a) of sub-section (1) of section 41 and weights or measures of all other classes shall be deemed to fall within the second category as referred to in clause (b) of that sub-section.

(2)

A review of the items specified in the First Schedule shall be made on the expiry of every two years from the commencement of these Rules and on such review, such changes, as may be necessary, shall be made in the said Schedule.

4.

Classification of tank-lorries, tank-wagons or other containers used for the transport of commodities to be sold, delivered or distributed in the course of inter-State trade or commerce

-.Every tank-lorry, wagon or other container, used as a measure or measuring instrument for the transport of any commodity which is to be sold during the course of inter-State trade or commerce, shall be deemed to fall within the first category and its capacity shall be calibrated and authenticated by the special seal-

(a)

in the case of a tank-lorry, in the State in which such tank-lorry is registered under the Motor Vehicles Act, 1939 (4 of 1939

);

(b)

in the case of a tank-wagon or other container, not being a tank-lorry, in the State in which such wagon or other container is manufactured;

(c)

in the case of any imported tank-wagon or other container, not being a tank-lorry, the State in which the import has been made:

Provided that in a State where such calibration facility is not available, the Controller of that State may permit calibration of the tank vehicles in other States, where such facility is available.

5.

Special seal

-(1) The special seal referred to in sub-section (3) of section 41 shall be of such size and dimensions and shall contain such particulars as are specified in the Second Schedule, and different sizes of special seals may be specified for the stamping of different classes of weights or measures.

(2)

The special seal shall be manufactured at the Mint at Bombay.

(2-A) The special seal also contain a code number for each State as given in the Second Schedule.

(3)

The cost of the special seal shall be borne by the State Government to which such seal is supplied.

(4)

The seals as specified in the Second Schedule shall not be used for any purpose other than verification of weights and measures sent from one State to another.

6.

Fees for stamping

-(1) The fee for the verification of any weight or measure of the first category and stamping of the weight or measure with the special seal shall be levied by the Government of the transferor State at the rate leviable in that State for verification and stamping of the same or similar weight or measure [* * *]

[Omitted words "plus an additional fee of twenty five per cent of the fee aforesaid" by Notification No. G.S.R. 252(E) dated 5.4.2004 (w.e.f. 2.12.1987)]

.

(2)

The fee for the verification of any weight or measure of the second category and stamping thereof shall be levied by the Government of the transferee State at the rate leviable in that State for the verification and stamping of the same or similar weight or measure [* * *]

[Omitted words "plus an additional fee of twenty five per cent of the fee aforesaid" by Notification No. G.S.R. 252(E) dated 5.4.2004 (w.e.f. 2.12.1987)]

(3)

The Director shall determine the fee for the verification and stamping of any weight or measure in relation to which no fee has been specified by the Government of the concerned State.

7.

Verification and stamping (how to be made)

-(1) The verification and stamping of any weight or measure of the first category or of the second category shall be made in accordance with the provisions of the Standards of Weights and Measures (General) Rules, 1987.

(2)

A State may authorise any or all the Inspectors who fulfil the essential qualification specified for the Inspector of Weights and Measures under the Standards of Weights and Measures (Enforcement) Rules of the States/Union Territories, as amended from time to time, for carrying out the verification of weight or measure using the special seal.

(3)

Enforcement authorities in the transferee State may make a sample checking of weight or measure of the first category and in case any defect of the following type is noticed, shall inform the Controller of the transferor State for initiating actions, including penal actions against the authorities.

(i)

Broken weights

(ii)

Weights with blow holes

(iii)

Broken capacity measures

(iv)

Leaking capacity measures

(v)

Leaking water meters

The weight or measure shall then be re-verified or rejected as specified in section 42 of the Standards of Weights and Measures Act, 1976.

(4)

Every manufacturer of weight or measure of the category mentioned under the First Schedule shall maintain a register indicating the quantity of weight or measure verified with the special seal and also mention the name of the dealer/user to whom it has been supplied. The register shall be subject to inspection by the Director, Legal Metrology or authorised person. The statement shall also contain the name and identification of the Inspector who has verified and affixed the

special seal.

(5)

Every manufacturer shall send, alongwith the consignment mentioned in the First Schedule, a statement indicating the quantity of weight or measure being sent, with the dealer's/user's name and address, to whom it has been sent. The dealer/user shall keep this record for inspection and also maintain a register of receipt and sale of such weight or measure on monthly basis which is subject to inspection by enforcement officials.

(6)

The verifying authorities in the transferee State shall examine the record maintained by the dealers in respect of weight or measure of the First category and in case of discrepancy, shall indicate the details to the Controller in the transferor State. He in turn may verify the details of the Statement made by the manufacturer in his State and take action accordingly. The Controller in the transferor State may also initiate similar action on the basis of records available with him.

(7)

On cross-checking of the statistics and accounts referred to in sub-rule (6) above and if it is established that a fraudulent discrepancy is found, suitable action may be taken against the concerned enforcement officials and penal action initiated against the manufacturer or dealer or both including suspension of his license, after giving him an opportunity of being heard.

(8)

In case of any doubt on the correctness of any weight or measure received from a transferor State, any dealer/user may in the transferee State request the Inspector in the transferee State to re-verify such weight or measure, as the case may be, on payment of the specified fee and upon such request the Inspector shall do so.

8.

Returns

.- (1) The periodical returns referred to in section 46 shall be submitted once in every three months within thirty days from the last date of such third month in the form specified in the Third Schedule.

(2)

Separate periodical returns shall be submitted for each category of weight or measure.

THE FIRST SCHEDULE

(See Rule 3)

CLASSES OF WEIGHTS OR MEASURES FALLING WITHIN THE FIRST CATEGORY

(Weights and Measures which are not required to be dismantled before despatch and which are not likely to lose their accuracy by reason of transport from the State to another).

1. Baby weighing machines.
2. Bathroom scales and person weighing machine except those which are required to be dismantled before despatch.
3. Beam scales class C and D.
4. Capacity measures of denominations not exceeding fifty litres.
5. Kitchen scales.
6. Length measures of all types.
7. Sphygmomanometers (Blood pressure equipment).
8. Tank-lorries, tank-wagons and other containers.
9. Clinical thermometers.
10. Volumetric measures such as dispensing measures and liquor measures.
11. Watermeters.
12. Weights of all denominations.
- 13.

Non-automatic weighing instruments of digital type belonging to ordinary accuracy (Class IV) having maximum capacity up to and including 50 kilograms.

14.

Spring balance of dial type.]

[THE SECOND SCHEDULE

(See Rule 5)

SPECIALSTAMPS AND SEALS FOR INTER STATE TRANSACTIONS

ALL THE DIMENSIONS ARE IN MILLIMETERS(mm)

List of States and Union Territories of Indian Union and their Code Numbers

Sl.No.

Name of the State/UT

Code No.

1.

Andhra Pradesh

AP

2.

Arunachal Pradesh

AR

3.

Assam

AS

4.

Bihar

BH

5.

Goa

GO

6.

Gujarat

GJ

7.

Haryana

HN

8.

Himachal Pradesh

HP

9.

Jammu and Kashmir

JK

10.

Karnataka

KK

11.

Kerala

KL

12.

Madhya Pradesh

MP

13.

Maharashtra

MH

14.

Manipur

MN
15.
Meghalaya
MG
16.
Mizoram
MZ
17.
Nagaland
NL
18.
Orissa
OR
19.
Punjab
PN
20.
Rajasthan
RJ
21.
Sikkim
SK
22.
Tripura
TP
23.
Tamil Nadu
TN
24.
Uttar Pradesh
UP
25.
West Bengal
WB
25.
Andaman and Nicobar Island
AN
27.
Chandigarh
CH
28.
Dadra and Nagar Haveli
DN
29.
Daman and Diu
DD
30.
Delhi
DL
31.
Lakshdweep

LK

32.

Pondicherry

PY]

THETHIRD SCHEDULE

(See Rule 8)

FORM FOR PERIODICAL RETURNS

Form of Return to be submitted by the Manufacturer of Weights, Measures Dealing in inter-State trade

(See Section 46 of the Act)

Name of the manufacturer:

Address:

Licence No. & Date:

Trademark:

Category

Date of despatch

Description of weights or measure

Quantity

Name & address of person to whom the dispatch is made

(Transferee State)

Invoice No. & Date

Remarks, if any

To

1. The Controller of Legal Metrology, Govt. of

.

(Name of Transferor State)

2. The Controller of Legal Metrology, Govt. of

..

(Name of Transferor State)

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